

IN RE: ESTATE OF
LAURA D. MCLEAN AKA LAURA MCCALL MCLEAN
Deceased.

Case No.: 572025CP000260CPAXMX

May 27, 2025

MOTION TO COMPEL JUDICIAL REVIEW AND ACCEPTANCE OF PRO SE FILING BY SOLE INTERESTED PARTY

COMES NOW the undersigned, Kevin B. McLean, proceeding pro se and under full reservation of rights, and respectfully moves this Honorable Court to compel review and acceptance of filings submitted in this matter. In support thereof, Petitioner states as follows:

1. Petitioner is the Sole Interested Party

Petitioner is the named Personal Representative in the pending Petition for Administration and the sole interested party pursuant to the definitions under the Florida Probate Code. No objections, competing petitions, or notices of appearance have been filed.

2. Florida Probate Rule 5.030(a) Permits Pro Se Representation by Sole Interested Parties

Florida Probate Rule 5.030(a) expressly states:

“Every guardian and every personal representative, unless the personal representative remains the sole interested person, shall be represented by an attorney admitted to practice in Florida.”

This provision is neither ambiguous nor discretionary. Petitioner, as the sole interested person, is exempt from mandatory legal representation under the Rule and Florida law.

3. Judicial Assistant and Clerk’s Office Have Refused to Allow the Matter to Proceed Without Counsel

On or about May 27, 2025, Judicial Assistant Tiffany Coulter, acting on behalf of the Court, issued a written response stating:

“You must obtain an attorney for Formal Administrations...”

No statute, case law, or rule was cited. Petitioner responded with a detailed rebuttal citing Florida Probate Rule 5.030(a), constitutional guarantees of court access, and requested clarification regarding alleged deficiencies in the filed petition. No reply was provided, despite over 20 recorded views of the email and no formal rebuttal on record.

- (See **Exhibit A** — Judicial Assistant Tiffany Coulter’s email dated May 27, 2025, including Gmail timestamp and receipt; Page 3)
- (See **Exhibit B** — Petitioner’s reply email with Gmail timestamp and receipt; Page 4)
- (See **Exhibit C** — MailSuite read receipts demonstrating multiple views of Petitioner’s reply email; Page 5)
- (See **Exhibit D** — Court-issued paper provided at filing showing Florida Probate Rule 5.030(a) with supervisor’s handwritten name at top; Pages 6)

4. Petitioner Has a Constitutional Right of Access to the Courts

Under Article I, § 21 of the Florida Constitution:

“The courts shall be open to every person for redress of any injury, and justice shall be administered without sale, denial or delay.”

To deny the Petitioner access to the probate process solely on the basis of lack of counsel violates this right. No order or hearing has been conducted to address the filings on the record; thus, such denial remains extrajudicial and procedurally improper.

5. Request for Relief

Petitioner respectfully requests the following relief:

6. That the Court formally review the Petition for Administration and all accompanying documents filed to date;
7. That the Court issue a ruling affirming Petitioner’s right to proceed pro se as the sole interested party under Rule 5.030(a);
8. That, in the alternative, if the Court believes the Petition is legally insufficient, Petitioner be provided a clear, written ruling specifying all alleged deficiencies with citations to governing rules, law, or precedent;
9. Any other relief this Court deems just and proper.

I, Kevin B. McLean, hereby declare under penalty of perjury under the laws of the State of Florida that the foregoing facts and statements contained in this Motion to Compel Judicial Review and Acceptance of Pro Se Filing are true and correct to the best of my knowledge, information, and belief.

Executed this 27th day of May, 2025, at Milton, Florida.



Respectfully submitted,

Kevin B. McLean
% Kevin Brady of the McLean family
7175 Highway 89
Milton, Florida State [32570-9561]
(850) 810-4081
www.kevinbradymclean.com

Pro Se – All Rights Reserved, Without Prejudice

Filed this 27th day of May, 2025

EXHIBIT A

Case #72025CP000260CPAXMX

Estate of Laura McLean 2025 CP 260  

  

 Summarize this email



Tiffany Coulter  <Tiffany.Coulter@flcourts1.gov>
to me 

9:31 AM (10 hours ago)    

Good morning,

I have received a copy of the documents that you have filed. You have filed the Petition for Administration pro se seeking that you be appointed PR. You must obtain an attorney for Formal Administrations. The attorney will also need to file an Amended Petition as the filed petition is deficient. Our Probate Coordinator, Antoinette Witek, has also relayed this to you via email but we have continued to receive pro se filings. Please obtain an attorney for us to move forward with this matter. Thank you!

Tiffany N. Coulter
Judicial Assistant to
Judge Steven C. Warrick
Circuit Court Division D
4025 Avalon Blvd.
Milton, FL 32583
(850) 981-5540
Tiffany.coulter@flcourts1.gov

PLEASE DO NOT SUBMIT DUPLICATED ORDERS.

Attention: The information contained in this E-mail message may be privileged and confidential under Fla. R. Jud. Admin. 2.420 and information intended only for the use of the individual(s) named above. If the reader of this message is not the intended recipient, you are hereby notified that any dissemination, distribution, or copy of this communication is strictly prohibited. If you have received this communication in error, please contact the sender by reply E-mail and destroy all copies of the original message. Thank you.

from: **Tiffany Coulter** <Tiffany.Coulter@flcourts1.gov>
to: "kev.b.mclean@gmail.com" <kev.b.mclean@gmail.com>
date: May 27, 2025, 9:31 AM
subject: Estate of Laura McLean 2025 CP 260
mailed-by: flcourts1.gov
signed-by: flcourts1.gov
security:  Standard encryption (TLS) [Learn more](#)
 : Important according to Google magic.

EXHIBIT B

Case # 572025CP000260CPAXMX



Kevin McLean <kev.b.mclean@gmail.com>
to Tiffany

10:03 AM (10 hours ago) 🌟 ✓ ☹️ ↶ ⋮

Dear Ms. Witek and Clerk of Court,

Thank you for your response regarding my Petition for Administration. This reply is entered into the record to correct any administrative misunderstandings and to assert my rights unequivocally: The paper I received at the Probate Court Window where these filings were marked into record expressly states under **Florida Probate Rule 5.030(a)** the following:

This is in reference to the matter regarding the Petition for Administration I have filed.

I wish to reiterate that I am proceeding as the **sole interested party** in this matter — a fact that remains **uncontested and un rebutted**. As such, **Florida Probate Rule 5.030(a)** explicitly states:

"Every guardian and every personal representative, unless the personal representative remains the sole interested person, shall be represented by an attorney admitted to practice in Florida."

This exception is not discretionary. It is a clear, black-letter rule: a **sole interested person** may proceed **without an attorney**. There is no statute or lawful authority, either in the Florida Statutes or the United States Code, that compels representation under these facts. The courts of Florida have upheld this position — notably, the Fourth District Court of Appeal — affirming that **sole interested persons may appear pro se** in formal probate proceedings.

I therefore respectfully reject the assertion that counsel is required in my circumstance. Further, I remind all involved that the **denial of access to the court** on the basis of an internal policy or misunderstanding constitutes an act **under color of law**, which violates **Article I, Section 21 of the Florida Constitution** ("The courts shall be open to every person for redress of any injury") and the **First and Fourteenth Amendments to the United States Constitution**.

1. I am proceeding as a living man and real party in interest, not a corporate fiction. There is no provision in the Florida Probate Code or Florida Rules of Civil Procedure that **expressly prohibits a natural person from filing for Formal Administration pro se**. If such exists, please cite the precise statute, case law, or constitutional provision mandating representation by a member of the Bar in this matter.

2. Access to the Court is a protected constitutional right. Denying a living man or woman access to redress without compelled association with a licensed third-party intermediary (attorney) **violates Article I, § 21 of the Florida Constitution**:

"The courts shall be open to every person for redress of any injury, and justice shall be administered without sale, denial or delay."

Further, **forced representation without lawful justification may constitute a civil rights violation under 42 U.S.C. § 1983**.

3. You are hereby placed on notice: If the Clerk or Probate Division refuses to docket or allow this matter to proceed solely because I am not represented by an attorney, I will be:

- Filing a **Motion to Compel Acceptance and Judicial Review of Pro Se Filing**;
- Petitioning the presiding Probate Judge for a formal ruling on the record;
- Filing complaints with the **Florida Inspector General, Florida Bar, and Judicial Qualifications Commission** if improper legal advice is being issued by court staff;
- Initiating **congressional and legislative inquiry** into the matter if constitutional violations persist.

Additionally, I am preparing communications to:

- The **Florida Attorney General's Office**;
- The **Governor's Legal Affairs Division**;
- The **U.S. Department of Justice Civil Rights Division**;
- Relevant **media and watchdog organizations** documenting access-to-court violations and administrative overreach.

I hereby renew my request for a specific, written explanation of what elements of my petition are "deficient," and whether those deficiencies pertain to form, content, jurisdiction, or other grounds. I will submit an **Amended Petition** within 10 days of receiving a good faith, point-by-point accounting.

Additionally, to rebut point-for-point: there has been absolutely no email received at this address speaking to my filings in any manner, else it would have received proper and timely rebuttal just as this one has.

Furthermore, I must respectfully caution that the statement made — "You must obtain an attorney for Formal Administrations" — may be construed as **unauthorized legal advice** issued under color of official capacity, and without any disclaimer to the contrary. As you are aware, court personnel are **prohibited from giving legal advice**, and such statements carry potential liability and ethical concerns, particularly when they contradict the plain language of governing rules (see Florida Probate Rule 5.030(a)).

I am operating under full reservation of rights and explicitly do not consent to any forced legal representation, agency, or loss of standing.

Respectfully,

KEVIN B. MCLEAN
%Kevin Brady of the McLean family
7175 Highway 89
Milton, Florida State [32570-9561]
(850) 810-4081
www.kevinbradymclean.com

from: **Kevin McLean** <kev.b.mclean@gmail.com>

to: **Tiffany Coulter** <Tiffany.Coulter@flcourts1.gov>

date: **May 27, 2025, 10:03 AM**

subject: **Re: Estate of Laura McLean 2025 CP 260**

mailed-by: **gmail.com**

EXHIBIT C

Case #572025CP000260CPAXMX

Estate of Laura McLean 2025 CP 260

[Open in Gmail](#)

Recipients	Tiffany Coulter <Tiffany.Coulter@flcourts1.gov>
Send date	May 27, 2025 at 10:03 AM
Activity	 19 opens  Link tracking Upgrade

Email Activity

[Download Delivery Certificate](#)

Today

-  **Opened email** 10:08 AM
by Tiffany Coulter
-  **Opened 18 more times.** Full tracking history is not enabled. [Upgrade to Mailsuite Advanced >](#)

EXHIBIT D

Case #572025CP000260CPAXMX

Antionette Witek

FLORIDA PROBATE RULE 5.030 ATTORNEYS

(a) **Required; Exception.** Every guardian and every personal representative, unless the personal representative remains the sole interested person, shall be represented by an attorney admitted to practice in Florida. A guardian or personal representative who is an attorney admitted to practice in Florida may represent himself or herself as guardian or personal representative. A guardian advocate is not required to be represented by an attorney unless otherwise required by law or the court.

(b) **Limited Appearance without Court Order.** An attorney of record for an interested person in a proceeding governed by these rules shall be the attorney of record in all other proceedings in the administration of the same estate or guardianship, except service of process in an independent action on a claim, unless at the time of appearance the attorney files a notice specifically limiting the attorney's appearance only to the particular proceeding or matter in which the attorney appears. At the conclusion of that proceeding or matter, the attorney's role terminates upon the attorney filing notice of completion of limited appearance and serving a copy on the client and other interested persons.

(c) **Withdrawal or Limited Appearance with Court Order.** An attorney of record may withdraw or limit the attorney's appearance with approval of the court, after filing a motion setting forth the reasons and serving a copy on the client and other interested persons.

NEED A LAWYER?

800-434-6009

LAWYER REFERRAL

AND INFORMATION SERVICE

Of The Escambia-Santa Rosa Bar Association

If you want to talk to a lawyer, give us a

Call at 434-6009. Your call is free. When

You meet with your lawyer, there will be a nominal fee for the first half-hour consultation.

Fees for additional services after the

First half-hour are arranged between

You and your lawyer.

Legal Aid – 850-432-8222

North West Florida Legal Services -

850-432-2336

Emerald Coast Legal Aid – 850-432-3999

ESC & SR Bar Association Lawyer Referral – 850-434-8135